

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201502840	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 04/14/2015 10:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/14/2016	Precinct: 62
Date/Time CV Reported Wed, 04/15/2015 11:38 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/15/2015 11:38 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Edward Boyle	23128	938103	062 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Nicholas Occhipinti	14430	956987	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Edward Boyle	Discourtesy: PO Edward Boyle spoke rudely to § 87(2)(b) and § 87(2)(b)	A . Substantiated
B . POM Edward Boyle	Abuse: PO Edward Boyle threatened to arrest § 87(2)(b)	B . Substantiated

Case Summary

On April 14, 2015, at approximately 10:00 p.m., PO Boyle and PO Occhipinti responded to a 911 call involving a dispute between neighbors at § 87(2)(b). The officers first spoke with the residents on the § 87(2)(b) floor in unit § 87(2)(b). The officers then spoke with the residents of unit § 87(2)(b) on the § 87(2)(b) floor, § 87(2)(b) and § 87(2)(b). PO Boyle told § 87(2)(b) about the discussion he had with the neighbors upstairs who were complaining about him. A dialogue ensued between PO Boyle and § 87(2)(b) and § 87(2)(b) in which PO Boyle allegedly cursed at them and made discourteous remarks (**Allegation A**). PO Boyle allegedly threatened to arrest § 87(2)(b) if he received any more calls about him (**Allegation B**). PO Boyle and PO Occhipinti turned toward the elevator to leave the building. Outside of the elevator, PO Boyle allegedly made an additional discourteous statement.

Mediation, Civil, and Criminal Histories

This case was eligible for mediation and it was offered to § 87(2)(b) during his intake call and to § 87(2)(b) and § 87(2)(b) during their CCRB interviews. Mediation was rejected. On June 18, 2015, a Notice of Claim request was filed. On June 22, 2015 the NYC Office of the Comptroller responded that no Notice of Claim was filed regarding this incident (Board Review 14). § 87(2)(b) [§§ 86(1)(3)&(4)] § 87(2)(c)

Civilian and Officer Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (Board Review 03, Board Review 04).
- PO Edward Boyle has been a member of the service for nine years and has had two previous CCRB allegations involving one case with no substantiated allegations against him. PO Boyle has one prior allegation of Discourtesy which was unfounded (Board Review 05).

Findings and Recommendations

Explanation of Subject Officer Identification

During his CCRB interview, § 87(2)(b) described the subject officer as a white male, 28-31 years old, standing 5'6" tall, skinny build, with black or brown hair (Board Review 06). § 87(2)(b) described the subject officer as a white male of average height, average build, with light colored hair (Board Review 07). § 87(2)(b) and § 87(2)(b) both made allegations against one officer. On his CCRB Interview Report, PO Boyle described himself as a § 87(2)(b) old white male, standing 5'8" tall, 200 pounds, with blue eyes.

PO Occhipinti testified that PO Boyle was the primary officer investigating and interacting with § 87(2)(b) (Board Review 08). PO Boyle also testified that he was the primary officer interacting with § 87(2)(b) (Board Review 09). § 87(2)(g)

Recommendations

Allegation A - Discourtesy: PO Edward Boyle spoke rudely to § 87(2)(b) and § 87(2)(b)

On April 14, 2015 at approximately 9:00 p.m., a dispute occurred between the complainants in this case, § 87(2)(b) and § 87(2)(b) and the residents of the apartment directly above them, § 87(2)(b) and § 87(2)(b). The § 87(2)(b) were complaining about noise coming from the § 87(2)(b)'s apartment. § 87(2)(b) and § 87(2)(b) each made a call to 911 to report the dispute and request assistance. § 87(2)(b) had reported that there may have been a knife involved but the officers later determined that no knife had been presented (Board Review 13).

§ 87(2)(b) testified that PO Boyle and PO Occhipinti arrived at his apartment (Board Review 06). § 87(2)(b) and PO Boyle engaged in a dialogue. § 87(2)(b) stated he spoke with the officer respectfully and in a calm voice. PO Boyle allegedly said, "This shit ends tonight," before threatening to arrest him and his wife. Later in the conversation, § 87(2)(b) had suggested that he might file a complaint against PO Boyle with his captain. PO Boyle allegedly responded, "Knock yourselves out, assholes." PO Boyle and PO Occhipinti turned away from § 87(2)(b)'s apartment and stepped toward the elevator. Outside of the elevator, PO Boyle allegedly said, "Fucking animals, these people."

§ 87(2)(b) testified that PO Boyle said, "Stupid fucking animals, these people" as the officers were about to enter the elevator at the end of the incident (Board Review 07). This is the only discourteous statement alleged by § 87(2)(b). § 87(2)(b) stated that PO Boyle said, "Go knock yourself out," but it was unclear to what this was in response to. § 87(2)(b) did not state that PO Boyle said "Knock yourselves out, assholes" as § 87(2)(b) had asserted in his testimony.

§ 87(2)(g)

§ 87(2)(b) estimated that she was approximately five to ten feet away from the officers when they were speaking with § 87(2)(b). § 87(2)(b) had her door open and was listening to most of the conversation between the officers and § 87(2)(b). § 87(2)(b) testified that on the incident date she was awoken twice. She was awoken first by the dispute between § 87(2)(b) and the neighbors on the § 87(2)(b) floor and then again when the officers arrived to speak with § 87(2)(b) and § 87(2)(b). § 87(2)(b) went to her door and opened the door to listen to what was happening when the officers arrived. § 87(2)(b) said aloud, "I need some sleep here. I'm not a well person myself." § 87(2)(b) did not hear any officer use any profanity toward the § 87(2)(b)'s. § 87(2)(b) did not hear § 87(2)(b) or § 87(2)(b) use any profanity during this incident. § 87(2)(b) had her door closed for approximately five minutes while the officers were in the hallway. § 87(2)(b) reopened her door as the officers were leaving. She heard an officer mumble something. The officer may have said, "I don't want to fucking come back again," but § 87(2)(b) was not certain of this and she felt it was not directed at anyone.

§ 87(2)(g)
§ 87(2)(b) refused to provide a sworn statement for the investigation. § 87(2)(b)
§ 87(2)(b) was identified through a Lexis search. § 87(2)(b) responded to a witness please call letter. § 87(2)(b) stated that he heard § 87(2)(b) tell the officers that him and his family were “stupid people, you monkey, you animal people.” § 87(2)(b) heard § 87(2)(b) tell the officers, “I don’t care. They are animal, they are stupid.” § 87(2)(b) heard an officer call someone an “asshole” before he left the building.

No additional independent witness statements were obtained for this investigation. A Lexis search was conducted to identify additional independent witnesses from the building who may have witnessed this incident. Calls were placed and letters mailed to identified residents of the § 87(2)(b) floor in the building. § 87(2)(g), § 87(2)(b)

PO Occhipinti did not recall PO Boyle speaking discourteously to § 87(2)(b) and § 87(2)(b) (Board Review 08). PO Occhipinti did not recall if PO Boyle said, “This shit is going to end tonight.” PO Occhipinti did not recall PO Boyle saying, “Knock yourselves out, assholes.” PO Occhipinti did not recall PO Boyle saying, “Stupid fucking animals, these people.” PO Occhipinti denied that he cursed at § 87(2)(b) and § 87(2)(b)

PO Boyle testified that he spoke with the residents on the § 87(2)(b) floor about their dispute with § 87(2)(b) (Board Review 09). PO Boyle spoke with the residents of apartment § 87(2)(b) and other residents on the § 87(2)(b) floor who all complained that § 87(2)(b) was constantly coming upstairs screaming and banging on somebody’s door. When PO Boyle spoke with § 87(2)(b) he attempted to explain the situation as it was conveyed to him by the neighbors on the § 87(2)(b) floor. § 87(2)(b) became upset that PO Boyle was investigating his conduct and not that of the neighbors upstairs. PO Boyle characterized § 87(2)(b)’s demeanor during this incident as “loud and irate.” PO Boyle did not say, “This shit is going to end tonight.” PO Boyle did not say, “Knock yourselves out, assholes” but he did acknowledge saying, “Knock yourselves out” in response to § 87(2)(b) stating that he was going to file a complaint against him. PO Boyle did not say, “Stupid fucking animals, these people.” PO Boyle stated that to the best of his recollection he did not curse at § 87(2)(b) but he could not recall if he had done so. PO Boyle described the tenor of the conversation as “unpleasant” by the end of the interaction. PO Boyle ended the interaction abruptly to prevent further escalation.

Patrol Guide 203-09 states that officers must “be courteous and respectful” in their contact with the public (Board Review 12).

§ 87(2)(g)
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§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **substantiated**.

Allegation B – Abuse of Authority: PO Edward Boyle threatened to arrest § 87(2)(b)

§ 87(2)(b) testified that two officers arrived at his apartment on the incident date (Board Review 03). PO Boyle told § 87(2)(b) that the neighbors were blaming him for problems in the building. PO Boyle did not give § 87(2)(b) an opportunity to explain the incident from his perspective. § 87(2)(b) alleged that PO Boyle said, “If I come back again, I’m going to arrest you and your wife, take you to the precinct, and you’re going to see a judge.”

§ 87(2)(b) testified that two officers arrived at her apartment (Board Review 07). § 87(2)(b) answered the door. PO Boyle told § 87(2)(b) that the neighbors upstairs had called in a complaint against them. PO Boyle said, “I have too many calls from the building against you.” § 87(2)(b) alleged that PO Boyle then said to § 87(2)(b) “If I receive any more calls against you again, I am going to arrest you.”

An independent witness statement was obtained from § 87(2)(b) on May 22, 2015 (Board Review 10). § 87(2)(b) lives on the § 87(2)(b) floor of § 87(2)(b). § 87(2)(b) testified that she heard an officer tell § 87(2)(b) four or five times to go back into his apartment. The officer then said, “Please go inside, I don’t want to have to take you in but if you keep it up I’m going to have to. One more time I get a phone call, I’m going to have no choice but to take you in.”

A phone statement was obtained from § 87(2)(b), § 87(2)(g) on April 24, 2015 (Board Review 11). § 87(2)(b) lives on the § 87(2)(b) floor but stated that he could hear some of the conversation that occurred between the § 87(2)(b) on the § 87(2)(b) floor and the police officers. § 87(2)(b) stated that he heard an officer tell § 87(2)(b) that they were “not doing this again. We’re going to arrest you.”

PO Occhipinti testified that he did not remember PO Boyle telling § 87(2)(b) and § 87(2)(b) that if there were more complaints they could be arrested (Board Review 08). PO Occhipinti stated that he did not recall his partner saying, “If I have to come back again I’m going to arrest you and your wife, take you to the precinct, and you’re going to see a judge.” PO Occhipinti stated that nothing during this incident rose to the level of a crime.

PO Boyle testified that he sought to speak with § 87(2)(b) to calm the conflict with his neighbors (Board Review 09). Multiple residents on the § 87(2)(b) floor had complained to PO Boyle about § 87(2)(b). § 87(2)(b) did not appear satisfied with the response of the police officers. § 87(2)(b) became frustrated that the officers were accusing him of causing trouble in the building when § 87(2)(b) had called 911 to complain about the § 87(2)(b) in apartment § 87(2)(b). The conversation between PO Boyle and § 87(2)(b) had become tense and PO Boyle wanted to end the interaction before it escalated further. PO Boyle asked § 87(2)(b) to calm down and go back into this apartment. PO Boyle then said, “We don’t want to have to come back here tonight. We don’t want to have to lock you up or anybody else up.” After the officers left, PO Boyle and PO Occhipinti testified that PO Occhipinti completed a 61 complaint report for harassment on behalf of § 87(2)(b) and § 87(2)(b). This complaint report was requested for the investigation but was not found. During his interview, PO Boyle was asked if he

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] In PD v. Grossman (OATH Index 2382/00R), it was found that an officer abused his authority when he threatened to arrest an individual in the absence of probable cause. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation B** be closed as **substantiated**.

Investigator:	_____	_____	_____
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date